



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/09/2026 - 09:00 AM

08/31/2026

3:53 PM

Page 3

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

24-PRO-00067	Conservatorship of BETTY JO SMITH, MD	OBJECTIONS TO INVENTORY AND APPRAISAL OF CONSERVATOR OR GUARDIAN- Continued from 04/15/26
Line 3	Proposed Conservatee: SMITH, BETTY JO, MD (LINGYS, JULIA E.) Petitioner: SMITH, EMANUEL EZENWA QUINCY (Pro Se) Petitioner: Stiles, Kelsey (GORINI, ROBERT A.) Conservatee: SMITH, BETTY JO, MD (LINGYS, JULIA E.) Proposed Conservator: QUINCY, EMANUEL EZENWA QUINCY Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN Temporary Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN Respondent: Smith, Della (MADISON, JONATHAN E.) Child: SMITH, DAVID	Other hearing
Tentative Ruling: APPEARANCE OPTIONAL The Objections are overruled as improperly served; moreover, they are now moot, given a Final Inventory and Appraisal has been filed.		



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/09/2026 - 09:00 AM

08/31/2026

3:53 PM

Page 4

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

24-PRO-01130	IN THE MATTER OF THE CORT FAMILY LIVING TRUST DATED DECEMBER 9, 1994, AS AMENDED AND RESTATED AND ALL SUBTRUSTS CREATED THEREUNDER.	Petition For Instructions Re: Trustee: 1. Account Authorizations; etc. Petition For Order To Deliver Survivor's Trust; etc. Petition to Suspend Robert Cort Jr. as Trustee of the Marital Trust Petition to Approve Accounting Application of Co-trustee Robert Cort, Jr. for Order Suspending All Three Co-Trustees etc.
Line 4, 5, 6, 7, 8	Petitioner: Cort, Deborah L. (CIALONE, FRANK A.) Petitioner: CORT, ROBERT J., JR (CILLEY, JAMES P.) Petitioner: Cresci, Diane L. (CIALONE, FRANK A.) Decedent: CORT, ROBERT J., SR Decedent: CORT, VERA Objector: Cort, Jr., Robert (FERGUSON, ADAM W) Objector: Cresci, Diane L. (CIALONE, FRANK A.) Beneficiary: CORT, ALICIA (PETERS, ELLIOT R.) Beneficiary: CORT, AMANDA (PETERS, ELLIOT R.) Beneficiary: CORT, DOUGLAS (PETERS, ELLIOT R.) Beneficiary: CORT, JOSHUA (PETERS, ELLIOT R.) Beneficiary: CORT, ZACHARY (PETERS, ELLIOT R.) Beneficiary: CRESCI, BRIAN (PETERS, ELLIOT R.) Beneficiary: CRESCI, CHRISPTOPHER (PETERS, ELLIOT R.) Beneficiary: DIBIASE, JESSICA (PETERS, ELLIOT R.) Beneficiary: GARCIA-ROMERO, ALICIA (PETERS, ELLIOT R.)	Petition Hearing Petition Hearing Petition Hearing Petition Hearing Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

After review of the status reports, in conjunction with the volume of litigation pending, the Court is of the opinion that due to hostility and lack of cooperation among the cotrustees, their ability to administer the trust is so impaired that they are now removed. The Court is not granting Co-Trustee Robert Cort's petition to suspend all co-trustees, but rather exercising its discretion and acting on its own authority. PrC 15642(b)(3). A neutral private fiduciary is appointed as